

New Account Form

Facility Information

NPI #:	
Facility Name:	
Shipping Contact Name:	
Shipping Contact Phone:	
Shipping Address:	
City / State / Zip:	
Phone / Fax:	
Email:	

Primary Contact

Name:	
Email:	
Phone:	
Preferred Method of Contact:	

Billing Information

Billing (A/P Contact):	
Billing Address:	
City / State / Zip:	
Phone / Fax:	
Email:	

Sales Information

Sales Representative:	
-----------------------	--



14-B Daisy Way, Paramus, NJ 07652

Email:	
Phone:	



14-B Daisy Way, Paramus, NJ 07652

Business Associate Agreement

This BUSINESS ASSOCIATE AGREEMENT ("BA Agreement") is made effective the _____ day of _____, 20____, by and between: Albacete MedDev LLC, having a business address at 14-B Daisy Way, Paramus, NJ 07652 ("Business Associate"), and: ("Covered Entity") having a business address at:

Address: _____ City: _____

State: _____ Zip: _____ Telephone Number: _____

(each a "Party" and together with the Business Associate, the "Parties").

Please include a listing of all shipping addresses associated with the "Covered Entity" on a separate sheet and forward with signed Business Associate Agreement.

Please check one of the following:

- ☐ Ambulatory Surgical Center (24)
- ☐ Physician Office (11)
- ☐ Nursing Home (32)
- ☐ Hospital Outpatient (22)
- ☐ Other: _____

WHEREAS, the Parties intend to enter into a business arrangement whereby Albacete MedDev LLC will provide certain payment, billing, and insurance coverage administrative services for Covered Entity, and, in the course of providing such services to Covered Entity, Albacete MedDev LLC may be considered a "business associate" of Covered Entity as this term is defined by the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"); and,

WHEREAS, Business Associate will require access to Protected Health Information (as defined below) to fulfill its responsibilities under such arrangement.

NOW, THEREFORE, in consideration of the Parties' compliance with HIPAA, Public Law 104-191, as amended by the Health Information Technology for Economic and Clinical Health Act ("HITECH"), Public Law 111-5, and the regulations promulgated thereunder by the U.S. Department of Health & Human Services (the "HIPAA Regulations"), and other applicable federal and state laws, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree to the provisions of this BA Agreement in order to address the requirements of HIPAA, the HIPAA Regulations, HITECH, and other applicable federal and state laws, to protect the interests of both Parties.

I. Definitions

(a) "Breach" means the acquisition, access, use, or disclosure of PHI in a manner not permitted under subpart E of 45 C.F.R. § Part 164 that compromises the security or privacy of the PHI (within the meaning of 45 C.F.R. § 164.402).

(b) "Designated Record Set" shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 C.F.R. § 164.501.

(c) “Electronic Protected Health Information” or “ePHI” means PHI that is transmitted by or maintained in electronic media as defined in 45 C.F.R. § 160.103.

(d) “Privacy Rule” shall mean the HIPAA regulations codified at 45 C.F.R. Parts § 160 and 164, Subparts A and E.

(e) “Protected Health Information” or “PHI” shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 C.F.R. § 164.103, and is the information created or received by Business Associate from or on behalf of Covered Entity, including, but not limited to, ePHI.

(f) “Secretary” shall mean the Secretary of the U.S. Department of Health & Human Services or designee.

(g) “Security Incident” shall mean the attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an information system as provided in 45 C.F.R. § 164.304.

(h) “Security Rule” shall mean the HIPAA regulations codified at 45 C.F.R. Parts § 160 and 164, Subparts A and C.

(i) “Unsecured PHI” means PHI that is not rendered unusable, unreadable, or indecipherable to unauthorized individuals through the use of a technology or methodology specified by the Secretary in regulations or other guidance issued under Section 13402(h)(2) of HITECH.

II. Obligations of Business Associate

(a) Business Associate acknowledges and agrees:

(i) that all PHI made available by Covered Entity in any form, including, but not limited to, paper record, oral communication, audio recording, facsimile, or ePHI to Business Associate, or that is created or received by Business Associate on Covered Entity’s behalf, shall be subject to this Agreement; and,

(ii) to use or disclose any PHI solely: (1) for carrying out certain payment, billing, and insurance coverage administrative services for Covered Entity or any agreement entered into between the Parties that necessitates the use and/or disclosure of PHI by Business Associate; (2) as required by applicable law, rule, or regulation, or by an accrediting or credentialing organization to whom Covered Entity is required to disclose such information or as otherwise permitted under this Agreement or as required by HIPAA; and, (3) as would be permitted by the HIPAA Regulations if such use or disclosure were made by Covered Entity. To the extent that Business Associate is to carry out an obligation of Covered Entity under the Privacy Rule, Business Associate will comply with the requirements of the Privacy Rule that apply to Covered Entity in the performance of the obligation.

(b) Business Associate shall make PHI in a Designated Record Set maintained by, or in the possession of, Business Associate available to Covered Entity for inspection and copying to enable Covered Entity to fulfill its obligations under 45 C.F.R. § 164.524 upon Covered Entity’s request.

(c) Upon Covered Entity’s request, Business Associate shall make PHI in a Designated Record Set maintained by, or in the possession of, Business Associate available to Covered Entity for amendment and shall incorporate any such amendment to enable Covered Entity to fulfill its obligations under 45 C.F.R. § 164.526. If an individual requests an amendment of PHI directly from Business Associate, Business Associate will notify Covered Entity of the request. Any approval or denial of an amendment of PHI shall be the responsibility of Covered Entity.

(d) Business Associate agrees to document such disclosures of PHI and information related to such disclosures as would be required for a Covered Entity to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 C.F.R. § 164.528. At a minimum, such documentation shall include: (i) the date of disclosure; (ii) the name of the entity or person who received PHI and, if known, the address of the entity or person; (iii) a brief description of the PHI disclosed; and (iv) a brief statement of the purpose of the disclosure that reasonably informs the Individual of the basis for the disclosure, or a copy of the Individual’s authorization, or a copy of the written request for disclosure. Business Associate shall retain such documentation for such period as is set forth in the Privacy Rule or other applicable laws.

(e) Business Associate agrees to provide to the Covered Entity the information required to provide an accounting of disclosures to enable Covered Entity to fulfill its obligations under the Privacy Rule upon the Covered Entity's request.

(f) Notwithstanding the prohibitions set forth in this Agreement, Business Associate may use and disclose PHI as follows:

(i) if necessary, for the proper management and administration of Business Associate or to carry out the legal responsibilities of Business Associate, provided that as to any such disclosure, the following requirements are met:

(1) the disclosure is required by law;

(2) Business Associate obtains reasonable assurances from the person to whom the information is disclosed that it will be held confidentially and used or further disclosed only as required by law or for the purpose for which it was disclosed to the person, and the person notifies Business Associate of any instances of which it is aware in which the confidentiality of the information has been breached; or,

(3) for data aggregation services, if to be provided by Business Associate for the health care operations of Covered Entity pursuant to any agreements between the Parties evidencing their business relationship. For purposes of this BA Agreement, data aggregation services means the combining of PHI by Business Associate with the PHI received by Business Associate in its capacity as a business associate of another covered entity, to permit data analyses that relate to the health care operations of the respective covered entities.

(g) Business Associate will only request, use, and disclose the minimum amount of PHI necessary for Business Associate to perform services for which it has been retained by Covered Entity. Business Associate agrees to comply with the Secretary's guidance regarding what is considered to be minimum necessary.

(h) Business Associate shall mitigate, to the extent practicable, any harmful effect that is known to Business Associate of a Breach relating to Business Associate or any of its agents or subcontractors.

(i) For purposes of determining Covered Entity's compliance with the Privacy Rule and Security Rule, Business Associate agrees to make available to the Secretary its internal practices, books, and records relating to the use and disclosure of PHI received from, or created or received by Business Associate on behalf of, Covered Entity.

III. Security Obligations of Business Associate

(a) Business Associate will implement appropriate physical, technical, and administrative safeguards to (1) prevent use or disclosure of PHI other than as permitted in this BA Agreement or as required by law, and (2) to reasonably and appropriately protect the confidentiality, integrity, and availability of the ePHI that Business Associate creates, receives, maintains, or transmits on behalf of Covered Entity. Business Associate shall comply fully with the applicable provisions of the Security Rule found in 45 C.F.R. §§ 164.308, 164.310, 164.312, and 164.316.

(b) Business Associate shall ensure that any subcontractors that create, receive, maintain, or transmit PHI on behalf of Business Associate agree in writing to the same restrictions and conditions that apply to Business Associate with respect to the PHI. Business Associate shall ensure that any agent with access to PHI shall implement the same safeguards required of the Business Associate with respect to PHI. Business Associate shall implement and maintain sanctions against agents and subcontractors that violate such restrictions and conditions and shall mitigate such effects of any such violation.

(c) Business Associate shall notify Covered Entity in writing within thirty (30) calendar days of:

(i) a Breach of Unsecured PHI;

(ii) any disclosure of PHI that is not authorized by this BA Agreement; or,

(iii) any Security Incident of which it becomes aware that Business Associate, its employees, agents, or subcontractors experience involving, or potentially involving, Unsecured PHI. This section constitutes notice to Covered Entity of the ongoing existence and occurrence of attempted but Unsuccessful Security Incidents for which no additional notice to Covered Entity is required. Unsuccessful Security Incidents include, but are not limited to, pings and other broadcast attacks on Business Associate's firewall, port scans, unsuccessful log-on attempts, denials of service, and any combination of the above, so long as no such incident results in unauthorized access, use, or disclosure of PHI.

(d) Business Associate shall, without unreasonable delay, but in no event later than sixty (60) calendar days after the discovery of a Breach of Unsecured PHI, notify Covered Entity of such Breach to the extent required under, and in accordance with the requirements of, 45 C.F.R. § 164.400 et seq. (Subpart D). To the extent provided under 45 C.F.R. § 164.404(a)(2), a Breach shall be treated as discovered as of the first day on which such Breach is known, or by exercising reasonable diligence would have been known, to any person, other than the person committing the Breach, who is an employee, officer, or agent of Business Associate.

(e) Business Associate shall:

(i) not receive, directly or indirectly, any impermissible remuneration in exchange for PHI or ePHI, except as permitted by the Privacy Rule; and

(ii) comply with the marketing and other restrictions applicable to business associates contained in the Privacy Rule.

IV. Obligations of Covered Entity

(a) Covered Entity shall notify Business Associate of any limitation(s) in its Notice of Privacy Practices, pursuant to 45 C.F.R. § 164.520 to the extent that such limitation may affect Business Associate's use or disclosure of PHI.

(b) Covered Entity shall notify Business Associate of any changes in, or revocation of, permission by any individual to use or disclose PHI, to the extent that such changes may affect Business Associate's use or disclosure of PHI.

(c) Covered Entity shall notify Business Associate of any restriction to the use or disclosure of PHI that Covered Entity has agreed to in accordance with 45 C.F.R. § 164.522, to the extent that such restriction may affect Business Associate's use or disclosure of PHI.

(d) Covered Entity shall not request Business Associate to use or disclose PHI in any manner that would not be permissible under HIPAA, if done by Covered Entity.

V. Term and Termination

(a) This BA Agreement shall be effective as of the date first written above and shall continue, unless otherwise provided in this BA Agreement, until the expiration or termination of any agreement entered into between the Parties that necessitates the use and/or disclosure of PHI by Business Associate.

(b) If either Party violates or breaches a material term of this BA Agreement, the non-breaching Party shall provide a written notice of the breach and the breaching Party shall have sixty (60) days to cure the breach or end the violation specified in the notice. If the breach cannot be cured or is not cured within that time period, this Agreement may be immediately terminated by the non-breaching Party. If neither cure nor termination is feasible, the non-breaching Party may report the problem to the Secretary.

(c) Upon termination of this Agreement, for any reason, Business Associate shall return or destroy all PHI received from Covered Entity, or created or received by Business Associate on behalf of Covered Entity. This provision shall apply to PHI that is in the possession of subcontractors or agents of Business Associate.

(d) In the event that Business Associate determines that returning or destroying the PHI is not feasible, Business Associate shall provide to Covered Entity notification of the conditions that make return or destruction unfeasible. Business Associate shall extend the protections of this BA Agreement to such PHI and limit further uses and disclosures of such PHI to those purposes that make the return or destruction unfeasible, for so long as Business Associate maintains such PHI.

VI. Miscellaneous

(a) Except as expressly stated herein or within HIPAA, the HIPAA Regulations, or HITECH, the Parties to this BA Agreement do not intend to create any rights in any third parties.

(b) The obligations of Business Associate under this Section shall survive the expiration, termination, or cancellation of this BA Agreement and/or the business relationship of the parties, and shall continue to bind Business Associate, its agents, employees, contractors, successors, and assigns as set forth herein.

(c) This BA Agreement may be amended or modified only in a writing signed by the Parties. No Party may assign its respective rights and obligations under this BA Agreement without the prior written consent of the other Party.

(d) None of the provisions of this BA Agreement are intended to create, nor will they be deemed to create, any relationship between the Parties other than that of independent parties contracting with each other solely for the purposes of effecting the provisions of this BA Agreement and any other agreements between the Parties evidencing their business relationship.

(e) This BA Agreement will be governed by the laws of the State of New Jersey.

(f) In the event that any provision of this BA Agreement is held by a court of competent jurisdiction to be invalid or unenforceable, the remainder of the provisions of this BA Agreement will remain in full force and effect. In addition, in the event a Party believes in good faith that any provision of this BA Agreement fails to comply with the then-current requirements of HIPAA, the HIPAA Regulations, HITECH, or any other applicable federal and state law, such Party shall notify the other Party in writing. For a period of up to thirty (30) days, the parties shall address in good faith such concern and amend the terms of this BA Agreement, if necessary to bring it into compliance. If, after such thirty-day period, the BA Agreement fails to comply with HIPAA, the HIPAA Regulations, HITECH, or any other applicable federal or state law, then either Party has the right to terminate upon written notice to the other Party.

IN WITNESS WHEREOF, the Parties have executed this BA Agreement as of the day and year written above.

COVERED ENTITY:	BUSINESS ASSOCIATE:
By: _____	By: _____
Printed Name: Authorized Signer	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

Covered Entity Shipping Addresses

List all shipping addresses associated with the “Covered Entity” on page 1 of the BAA:

- 1) _____

- 2) _____

- 3) _____

- 4) _____

- 5) _____

Purchase Agreement

This Purchase Agreement ("Agreement") is entered into this _____ day of _____, 202____ ("Effective Date") by and between _____ ("Purchaser") and Albacete MedDev LLC ("Seller") (collectively, the "Parties").

WHEREAS, the Seller distributes cellular/tissue-based medical products and advanced wound care products; and

WHEREAS, the Purchaser is a health care provider that uses cellular/tissue-based and advanced wound care products on its patients and wishes to purchase said products from the Seller.

NOW, THEREFORE, for and in consideration of the premises and the mutual covenants, obligations, and promises contained in this Agreement, the adequacy of which is hereby acknowledged by each party, the Seller and Purchaser, intending to be legally bound, agree as follows:

1. **Product and Pricing.** This Agreement is for the Purchaser's purchase of cellular/tissue-based products, skin substitute products, and advanced wound care products (collectively, "Products"). A description of the Products, together with the per-square-centimeter (sq cm) price applicable to each product line, is set forth in Schedule A. Each skin substitute Product is priced at a fixed rate per sq cm as specified in Schedule A, calculated by the graft surface area (Length × Width). The Seller may change the prices set forth in Schedule A at any time upon written notice to Purchaser. Any additional product lines added to Seller's portfolio during the Term shall be added to Schedule A at the price specified by Seller at that time.

2. **Order Fulfillment.** Purchaser shall utilize Seller's insurance verification request form ("IVR") prior to ordering and purchasing the Products. After Purchaser submits the IVR to Seller, the Purchaser shall submit an order for the purchase of the Products to Seller. Purchaser shall upload the tissue identification number with its order where applicable. After Purchaser submits an order, Seller will package and ship the Products. Seller will provide delivery status information of the shipment from the carrier to the Purchaser. Purchaser shall then use the Products only as Medically Necessary in the Purchaser's sole and absolute discretion. Purchaser is responsible for the payment of Products ordered by Purchaser even if the person submitting the order did not have authority to do so. Legal title and ownership of the Products shall transfer from Seller to Purchaser upon shipment to the Purchaser's designated location.

3. **Payment.** Purchaser shall pay for the Products ordered from Seller on Net sixty (60) day terms, calculated from the earlier of: (1) the Products' date of service, or (2) fourteen (14) days after shipment ("Use Date"). If payment is not received within sixty (60) days of the Use Date, the amount outstanding will bear simple interest at the rate of eighteen percent (18%) per annum, or the highest rate permitted by law, whichever is less.

4. **Term.** This Agreement shall commence on the Effective Date and end once terminated as provided below (the "Term"). Purchaser may terminate this Agreement upon thirty (30) days prior written notice to Seller. Seller may terminate this Agreement at any time for any reason in Seller's sole and absolute discretion.

5. **Representations and Warranties.** Purchaser shall make no representations, warranties, or commitments to any third parties binding Seller without its prior consent. Purchaser hereby represents and warrants that Purchaser has never paid nor received any remuneration, in cash or in kind, to any person or entity in return for referrals, ordering of services, or other activities that may violate any applicable laws. Purchaser represents and warrants that they have not been excluded, debarred, or suspended from any federal or state plan or program, the Department of Health and Human Services, Office of the Inspector General, or the Centers for Medicare and Medicaid Services. In the event that during the term of this Agreement Purchaser becomes excluded, debarred, suspended from, or otherwise sanctioned by any federal or state healthcare plan or program, the Department of Health and Human Services, Office of the Inspector General, the Centers for Medicare and Medicaid Services, or any other governmental authority, Purchaser shall promptly notify Seller both in writing and orally. Purchaser represents and warrants that Purchaser's

performance of the duties and responsibilities under this Agreement will not violate any pending agreement (including but not limited to any non-compete agreements, non-solicitation agreements, non-disclosure agreements, or other agreements containing restrictive covenants limiting Purchaser's ability to perform the duties and responsibilities for any clients or customers of Seller) that Purchaser has made with any other person or entity. Purchaser further represents that they have not previously, and will not in the future, disclose to Seller any proprietary information or trade secrets belonging to any other person or entity, including Purchaser's previous business relationships, companies, customers, or employers. Purchaser hereby represents and warrants that they have the unlimited legal right to enter into this Agreement and to perform in accordance with its terms without violating the rights of any other person or entity or any applicable law. Purchaser shall indemnify and hold harmless Seller from all damages, claims, and expenses arising out of or resulting from any claim that this Agreement violates any such agreements or laws.

6. Compliance with Laws. Purchaser represents and agrees at all times to comply with all federal and state statutes, laws, and regulations, including but not limited to: (i) the Medicare/Medicaid Anti-Kickback provisions under the U.S. Social Security Act, 42 U.S.C. 1320a-7b and its implementing regulations; (ii) the federal Physician Self-Referral Statute, 42 U.S.C. 1395nn, and its implementing regulations; (iii) the federal False Claims Act, 31 U.S.C. 3729 et seq.; (iv) the federal Civil Monetary Penalties Law, 42 U.S.C. 1320a-7a; (v) the federal Exclusion Authority Statute, 42 U.S.C. 1320a-7; (vi) the federal Physician Sunshine Act, 42 U.S.C. 1320a-7h and its implementing regulations; (vii) the Federal Food, Drug and Cosmetic Act, 21 U.S.C. section 301 et seq., together with any rules and regulations promulgated thereunder; (viii) the Health Insurance Portability and Accountability Act of 1996, as amended by the Health Information Technology for Economic and Clinical Health Act of 2009, 42 U.S.C. section 201 et seq., and any other laws governing the privacy, security, and confidentiality of health care information; and (ix) the Travel Act, 18 U.S.C. 1952.

7. Anti-Kickback Statute / Anti-Fraud. Purchaser will not, under any circumstances, directly or indirectly, make, give, offer, promise, or receive any remuneration, payment, benefit, "kickback," other incentive, or anything of value to: (1) any physician, doctor, hospital, administrator, or other healthcare-related Person that would violate any applicable law, be ethically questionable, create conflicts of interest, or cause any physician, doctor, hospital, administrator, or other healthcare-related Person to breach their rules of professional conduct or internal regulations of their organizations; (2) any personnel of any customer or potential customer of Purchaser or Seller; (3) any personnel of any vendor or potential vendor of Purchaser or Seller; or (4) any other Person at the suggestion, request, or direction, or for the benefit of, the above-described Persons. "Person" means a natural person, corporation, business trust, estate, trust, custodian, trustee, executor, administrator, nominee, partnership, limited liability partnership, limited partnership, association, limited liability company, government, governmental subdivision, governmental agency, governmental instrumentality, any other legal or commercial entity, in its own or representative capacity.

8. Professional Practice. The professional relationship between Purchaser and its patients is always solely between Purchaser and its patients. By this Agreement, the Parties agree and acknowledge Seller is not and will not interfere with, control, direct, or supervise Purchaser in connection with the provision of professional services, the exercise of professional judgment, or in the care or treatment of Purchaser's patients. Purchaser is and will remain entirely independent as to the diagnosis and treatment of its patients and all other medical, professional, and ethical affairs.

9. Medical Necessity / Medically Necessary. Purchaser and Seller acknowledge and agree that use of any Products is at the sole discretion of the Purchaser and pursuant to the Purchaser's professional medical judgment. Purchaser shall use the Products based on Medical Necessity and as Medically Necessary. Medical Necessity and Medically Necessary shall be defined to mean: those health care services that are in accordance with generally accepted, evidence-based medical standards or that are considered by most physicians (or other independent licensed practitioners or providers) within the community of their respective professional organizations to be the standard of care, and all as provided in accordance with all health care laws and regulations. Additionally, in order to be Medically Necessary, services or products must be: (1) deemed reasonably necessary to diagnose, correct, cure, alleviate, or prevent the worsening of conditions that endanger life, cause suffering or pain, or have resulted or will result in a

handicap, physical deformity, or malfunction; and (2) not more costly than an alternative service or sequence of services at least as likely to produce equivalent therapeutic or diagnostic results as to the diagnosis or treatment of that patient's illness, injury, or disease. Any such services must be clinically appropriate, individualized, specific, and consistent with symptoms or confirmed diagnosis of the illness or injury under treatment, and neither more nor less than what the recipient requires at that specific point in time. Any services that constitute experimental, non-FDA approved, investigational, or cosmetic uses are specifically excluded from coverage by any federal or state Government sponsored program, including, but not limited to, Medicare, and any of which are or will be deemed "not medically necessary." As part of their commitment to compliance, Purchaser certifies that no person will provide any false or misleading information to any physician or other healthcare professional or provider which may impact their clinical decisions regarding medical necessity. All medical decisions made by any physician or other medical provider that in any way may be directly or indirectly associated or relevant to this Agreement shall be made exclusively by such physician or medical provider in the exercise of his or her independent medical judgment. The Parties certify that they shall at no time provide any direct or indirect financial incentive or any remuneration or advantage of any kind that, without limitation, would or could be perceived or understood to improperly or illegally interfere with a physician's or medical provider's independent professional judgment as to medical necessity.

10. HIPAA. The purchase of the Products herein involves the access, use, and disclosure of "Protected Health Information" as that term is defined by the Health Insurance Portability and Accountability Act of 1996, as codified at 42 U.S.C.A. 1320d et seq. ("HIPAA"). Accordingly, the Parties agree to enter into a Business Associate Agreement (attached hereto as Exhibit B) and comply with the Health Information Technology for Economic and Clinical Health Act of 2009 (the "HITECH Act"), the Administrative Simplification Provisions of HIPAA, and any current and future regulations promulgated under the HITECH Act or HIPAA, including without limitation the federal privacy regulations contained in 45 C.F.R. Parts 160 and 164 (the "Federal Privacy Regulations"), the federal security standards contained in 45 C.F.R. Parts 160, 162, and 164 (the "Federal Security Regulations"), and the federal standards for electronic transactions contained in 45 C.F.R. Parts 160 and 162 (the "Federal Electronic Transaction Regulations"), all as amended from time to time and collectively referred to herein as the "HIPAA Requirements". Purchaser agrees not to use or further disclose any "Protected Health Information," including "Electronic Protected Health Information," (as such terms are defined in the HIPAA Requirements) other than as permitted by the HIPAA Requirements and the terms of this Agreement and any applicable state or local laws and regulations. As further required in the Business Associate Agreement, Purchaser shall require any delegated party to enter into a business associate agreement which obligates such third-party to access, use, and disclose PHI only in compliance with HIPAA and the terms of the Business Associate Agreement.

11. Confidentiality. The Purchaser acknowledges it will be given access to certain confidential and proprietary information of Seller ("Confidential Information"). Confidential Information includes, but is not limited to, information of any kind, nature, or description concerning any matters affecting or relating to the Seller or the business or operations of Seller, including pricing data, and/or the products, processes, or other data of the Seller. Purchaser agrees (i) to keep all Confidential Information wholly confidential, (ii) not to disclose Confidential Information to any third party whatsoever, and (iii) not to use Confidential Information for the personal or business advantage of Purchaser or any other person or entity. Title to all property and information, including all Confidential Information, shall remain or become the sole property of Seller. Purchaser agrees that they will not, during or after the term of this Agreement, make any unauthorized disclosure of Confidential Information, and agrees to preserve and protect the confidentiality of any third-party information to the same extent as Seller's information.

12. Restrictive Covenants.

a. Non-Solicitation of Seller's Representatives or Agents. During the pendency of this Agreement and for a period of one (1) year following the termination of this Agreement, Purchaser shall not, either directly or indirectly, call on, solicit, encourage, or induce any representatives, agents, officers, employees, or customers of Seller or its subsidiaries or affiliates whom Purchaser had contact with, knowledge of, or association with (during the pendency of this Agreement) to terminate their relationship with the Seller or its subsidiaries or affiliates, and will not assist any other person or entity in doing the same.

b. Non-Disparagement. Purchaser covenants and agrees that Purchaser shall not engage in any pattern of conduct that involves the making or publishing of written or oral statements or remarks (including, without limitation, the repetition or distribution of derogatory rumors, allegations, negative reports, or comments) which are disparaging, deleterious, or damaging to the integrity, reputation, or goodwill of Seller or its subsidiaries or affiliates or of management or ownership of Seller or any of its subsidiaries or affiliates.

c. Reasonableness of Restrictions. Purchaser agrees and acknowledges that the restrictions contained in this Agreement, including without limitation the restrictive covenants contained herein, are reasonable and necessary to protect the valuable proprietary assets, goodwill, and business of Seller and that the restrictions will not prevent or unreasonably restrict Purchaser's ability to earn a livelihood.

d. Right to Injunction. Purchaser acknowledges that the covenants and restrictions in this Agreement are a reasonable and necessary protection of the legitimate business interests of Seller. In the event of any violation of these restrictions, Seller shall be entitled to preliminary and permanent injunctive relief, in addition to any other remedies otherwise available to it at law or in equity.

13. Purchaser's Taxpayer I.D. Number. Purchaser represents and warrants that Purchaser's taxpayer identification number is _____.

14. Insurance. Purchaser shall maintain worker's compensation insurance, employer's liability insurance, comprehensive general liability insurance, errors & omissions insurance, and automobile insurance. Purchaser shall require any person or entity acting for or on its behalf to maintain the same insurance as required by the Purchaser. The Seller is not required to maintain any insurance on behalf of or for the benefit of the Purchaser.

15. Assignment. Purchaser shall not assign this Agreement or any portion hereof (and any purported assignment shall be null and void). The Seller may assign this Agreement or any portion hereof to any subsidiary, affiliate, or successor, whether by merger, consolidation, sale of equity, sale of assets, or otherwise, and may collaterally assign this Agreement as security for any debt. Subject to the foregoing, this Agreement shall be binding upon, inure to the benefit of, and be enforceable by the Parties and their respective heirs, legal representatives, successors, and permitted assigns.

16. Waiver. Failure to invoke any right, condition, or covenant in this Agreement by the Seller shall not be deemed to imply or constitute a waiver of any rights, condition, or covenant and neither party may rely on such failure.

17. INDEMNITY. PURCHASER SHALL DEFEND, INDEMNIFY, AND HOLD HARMLESS SELLER AND ITS SUBSIDIARIES AND AFFILIATES, AS WELL AS THEIR DIRECTORS, OFFICERS, MEMBERS, MANAGERS, CONTRACTORS, AGENTS, SUCCESSORS, AND ASSIGNS FROM AND AGAINST ANY AND ALL LOSSES, DAMAGES, LIABILITIES, CLAIMS, ACTIONS, JUDGMENTS, COURT COSTS, LEGAL, AND OTHER EXPENSES (INCLUDING, WITHOUT LIMITATION, ATTORNEY'S FEES AND EXPENSES), WHICH THE SELLER OR ITS SUBSIDIARIES OR AFFILIATES MAY INCUR AS A DIRECT OR INDIRECT CONSEQUENCE OF: (A) THIS AGREEMENT; (B) THE PURPOSE TO WHICH PURCHASER ENTERS THIS AGREEMENT; (C) THE FAILURE OF PURCHASER TO PERFORM ANY OBLIGATIONS IN THIS AGREEMENT; (D) ANY FAILURE OF PURCHASER'S REPRESENTATIONS OR WARRANTIES TO BE WHOLLY TRUE AND CORRECT; OR (E) ANY ACT OR OMISSION BY PURCHASER, INCLUDING ITS OWNERS OR ANY OTHER PERSON OR ENTITY ACTING FOR OR ON THE BEHALF OF PURCHASER. PURCHASER SHALL IMMEDIATELY PAY TO SELLER UPON DEMAND ANY AMOUNTS OWING UNDER THIS INDEMNITY, TOGETHER WITH INTEREST AT THE HIGHEST LEGAL RATES FROM THE DATE THE INDEBTEDNESS ARISES UNTIL PAID IN FULL.

18. Notice to Seller. Any notice or communication permitted or required by this Agreement to Seller shall be deemed effective when personally delivered or deposited, postage prepaid, in the first-class mail of the United States properly addressed to the Seller at:

Albacete MedDev LLC

14-B Daisy Way

Paramus, NJ 07652

19. Notice to Purchaser. Any notice or communication permitted or required by this Agreement to Purchaser shall be deemed effective when personally delivered or transmitted to Purchaser's email address that is being used or has been used in connection with this Agreement. An email notice is conclusively deemed to have been received by Purchaser on the date and time sent by the Seller.

20. Enforceability. If any provision of this Agreement is held by a court of competent jurisdiction or an arbitrator to be unenforceable, the remainder of the Agreement shall remain in full force and effect and shall in no way be impaired. If any suit or legal proceeding is instituted concerning or arising out of this Agreement, the substantially prevailing party will be entitled to all such party's costs, including, without limitation, the court or arbitration costs and reasonable attorneys' fees incurred in each action, suit, or proceeding, including appeals thereto.

21. Choice of Law. This Agreement shall be governed by and interpreted according to the laws and decisions of the courts of the State of New Jersey and shall be deemed to have been entered into and wholly performed in Paramus, New Jersey.

22. Dispute Resolution / Arbitration. Any controversies, disputes, actions, causes of action, or other claims arising out of or in connection with the provisions of this Agreement which cannot be settled by mutual agreement shall first be submitted to mediation between the Parties, which mediation shall be scheduled within 180 days of either party receiving written notice to mediate under this clause, with the Parties mutually agreeing to a mediator. If the Parties cannot agree to a mediator, a mediator shall be selected in accordance with the Commercial Mediation Rules of the American Arbitration Association ("AAA"). If the Parties do not settle the dispute through mediation, the Parties shall institute binding arbitration in accordance with the Commercial Arbitration Rules of the AAA, with such binding arbitration to be held in Paramus, New Jersey. Judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof. Purchaser waives the rights to a jury trial of any claim or cause of action based upon or arising out of this Agreement or any other document or dealings between the Parties. The scope of this waiver is intended to be all-encompassing of all disputes that may be filed in any court and that relate to the subject matter of this transaction or between the Parties, including contract claims, tort claims, breach of duty claims, and all other common law and statutory claims. The arbitrator shall not award to Purchaser direct, indirect, punitive, exemplary, special, incidental, or consequential damages of any kind (including lost profits) regardless of the form of the action, whether in contract, tort (including negligence), or otherwise. Either party may initiate arbitration with respect to the matters submitted to mediation by filing a written demand for arbitration at any time following the initial mediation session or 360 days after the date of filing the written request for mediation, whichever occurs first. Seller shall have the right to seek injunctive relief in any court of competent jurisdiction for the enforcement of the provisions of this Agreement.

23. Entire Agreement. This instrument contains the entire agreement of the Parties related to the relationship between the Purchaser and Seller. This Agreement may not be amended except by an agreement in writing which is signed by each party hereto. The Parties have participated jointly in negotiating and drafting this Agreement. If a question concerning intent or interpretation arises, no presumption or burden of proof shall arise favoring or disfavoring any party by virtue of authorship. This Agreement contains the complete, full, and exclusive understanding of the Parties and supersedes all prior agreements, promises, or understandings between the Parties.

24. Acknowledgment. By signing below, the Parties certify and represent that they have carefully read and considered the foregoing Agreement and fully understand all provisions of this Agreement. The Parties are signing this Agreement voluntarily and without coercion, undue influence, threats, or intimidations of any kind or type whatsoever.

25. Counterparts. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original for all purposes and all of which shall be deemed collectively to be one agreement.

IN WITNESS WHEREOF, the Parties have signed and entered into this Agreement on the Effective Date.



14-B Daisy Way, Paramus, NJ 07652

PURCHASER	SELLER
By: _____ Printed Name: _____	By: _____ Printed Name: _____

Purchase Agreement – Schedule A

Products and Pricing

Pricing Policy

Each skin substitute product distributed by Seller is priced at **40% of the applicable 100% Medicare reimbursement rate per unit** for the site-of-service MAC locality. Because the 100% reimbursement rate **varies by MAC locality**, per-unit prices and invoice totals are **not fixed in this Schedule** and are calculated at the time of order using the then-current locality reimbursement rate.

Invoice Price = 40% × (applicable MAC-locality 100% reimbursement rate per unit) × billable units

Unit basis: sheet products are billed per square centimeter (sq cm); Interfyl® (flowable / non-sheet) is billed per milligram (mg). Sheet billable units = Length (cm) × Width (cm); Interfyl billable units = milligrams (mg) per unit.

Payment Terms: Net sixty (60) days from Use Date, as defined in Section 3 of the Purchase Agreement. Custom sizes are priced on the same per-unit basis as the corresponding product line.

Rate Schedule by Product Line

Product Line	HCPCS	Price Basis (per unit)
BioLab Sciences Tri-Membrane Wrap™	Q4344	40% of locality 100% reimbursement / sq cm
BioLab Sciences Microlyte® SAM™	A2005	40% of locality 100% reimbursement / sq cm
Palisade™ Placental-Derived Allograft (Dual-Membrane)	Q4350	40% of locality 100% reimbursement / sq cm
Activate Matrix™	Q4301	40% of locality 100% reimbursement / sq cm
XCell AmnioMatrix™	Q4280	40% of locality 100% reimbursement / sq cm
Interfyl® Human Connective Matrix (Flowable) NEW	Q4171	40% of locality 100% reimbursement / mg

The tables that follow list the products and their billable units per size. Dollar prices are intentionally not fixed here because the 100% reimbursement rate varies by MAC locality; the invoice price for any size is calculated as 40% × the applicable locality reimbursement rate per unit × the billable units shown. Locality reimbursement rates are per the applicable CMS MAC pricing schedule.

BioLab Sciences Tri-Membrane Wrap™

HCPCS Code: Q4344 • Priced per sq cm at 40% of the locality 100% reimbursement rate

Part Number	Description	Billable Units (sq cm)
TMW0202	Tri-Membrane Wrap 2x2 cm (Q4344)	4
TMW0203	Tri-Membrane Wrap 2x3 cm (Q4344)	6
TMW0204	Tri-Membrane Wrap 2x4 cm (Q4344)	8
TMW0404	Tri-Membrane Wrap 4x4 cm (Q4344)	16
TMW0406	Tri-Membrane Wrap 4x6 cm (Q4344)	24
TMW0408	Tri-Membrane Wrap 4x8 cm (Q4344)	32
TMW0608	Tri-Membrane Wrap 6x8 cm (Q4344)	48
TMW1010	Tri-Membrane Wrap 10x10 cm (Q4344)	100

BioLab Sciences Microlyte® SAM™

HCPCS Code: A2005 • 510(k) Cleared Silver Antimicrobial Wound Dressing • Priced per sq cm at 40% of the locality 100% reimbursement rate

Part Number	Description	Billable Units (sq cm)
MSAM0202	Microlyte SAM 2x2 cm (A2005)	4
MSAM0404	Microlyte SAM 4x4 cm (A2005)	16
MSAM0505	Microlyte SAM 5x5 cm (A2005)	25
MSAM0608	Microlyte SAM 6x8 cm (A2005)	48
MSAMD16	Microlyte SAM 16 mm Disc (A2005)	2

Palisade™ Placental-Derived Allograft (Dual-Membrane)

HCPCS Code: Q4350 • Amnion-Chorion Dual-Membrane Allograft • Priced per sq cm at 40% of the locality 100% reimbursement rate

Part Number	Description	Billable Units (sq cm)
PAL-26222	Palisade DM 2x2 cm (Q4350)	4
PAL-26224	Palisade DM 2x4 cm (Q4350)	8
PAL-26244	Palisade DM 4x4 cm (Q4350)	16
PAL-26248	Palisade DM 4x8 cm (Q4350)	32

Activate Matrix™

HCPCS Code: Q4301 • Priced per sq cm at 40% of the locality 100% reimbursement rate

Part Number	Description	Billable Units (sq cm)
ACT0202	Activate Matrix 2x2 cm (Q4301)	4
ACT0204	Activate Matrix 2x4 cm (Q4301)	8
ACT0404	Activate Matrix 4x4 cm (Q4301)	16
ACT0408	Activate Matrix 4x8 cm (Q4301)	32

XCell AmnioMatrix™

HCPCS Code: Q4280 • Lyophilized Amniotic Membrane • Priced per sq cm at 40% of the locality 100% reimbursement rate

Part Number	Description	Billable Units (sq cm)
XAM-0202	XCell AmnioMatrix 2x2 cm (Q4280)	4
XAM-0204	XCell AmnioMatrix 2x4 cm (Q4280)	8
XAM-0404	XCell AmnioMatrix 4x4 cm (Q4280)	16
XAM-0407	XCell AmnioMatrix 4x7 cm (Q4280)	28

Interfyl® Human Connective Matrix (Flowable) NEW

HCPCS Code: Q4171 (per 1 mg) • Human Connective Tissue Matrix (flowable / non-sheet) • Priced per mg at 40% of the locality 100% reimbursement rate

Part Number	Description	Billable Units (mg)	Coverage (sq cm)
HCTM015	Interfyl 1.5 mL Flowable (Q4171)	275	41
HCTM010	Interfyl 1.0 mL Flowable (Q4171)	170	35
HCTM001	Interfyl 100 mg Flowable (Q4171)	100	30
HCTM060	Interfyl 0.6 mL Flowable (Q4171)	70	9
HCTM030	Interfyl 0.3 mL Flowable (Q4171)	40	8

Interfyl® is a non-sheet (flowable) skin substitute billed under HCPCS Q4171 per 1 mg. Invoice Price = 40% × the applicable locality 100% reimbursement rate per mg × the billable milligrams shown. Coverage (sq cm) is shown for reference only and is not a pricing input. All prices equal 40% of the applicable MAC-locality 100% reimbursement rate per unit and are subject to change by Seller pursuant to Section 1 of the Purchase Agreement.